

the instrument, result to the heir-at-law, and the testator *inform the devisees* that his intention in making the devise is, that they shall hold the estate *in trust for certain persons*, which the devisees undertake to do. Will the Court, under such circumstances, compel the devisees *to execute the* [*65] *parol intention*, or will *the equitable interest result to the *heir*? In favour of the parol trust, it will be argued that the testator left his will in the form in which it appears, under the impression that his object, verbally communicated, would be carried out, and that the trust can therefore be supported, on the ground of mistake in himself, or fraud in the devisees in not apprising the testator that the trust could not be executed. To this the answer is, that, upon the face of the will, the equitable interest results to the heir-at-law, and that, if the testator has not disposed of the equitable interest, as required by the statute, the Court cannot make a will for him, on the plea of mistake or fraud (a): that the Court has interfered in the case of fraud in those instances only where the *devisee* taking the beneficial interest under the will, was the contriver of the fraud, and, as no man may take advantage of his own wrong, the Court compels the devisee to execute the intention fraudulently intercepted: but in the case supposed, the *legal estate* only is in the *devisees*, while the beneficial interest is in the heir-at-law, who is wholly disconnected from the fraud. What jurisdiction, therefore, has the Court to act upon the conscience of the heir, to deprive him of that estate, which has not been devised away according to the Statute of Wills? and how can the trustees for the heir be held to be trustees for another in the absence of all fraud on the part of the heir? It would seem, upon principle, that where a trust results upon the face of the will, the circumstance of an express or implied promise on the part of the devisee to execute a certain trust is not a sufficient ground for authorising the Court to execute the trust as against the heir-at-law (b).

(a) *Newburg v. Newburg*, 5 Madd. 364.

(b) The cases upon the subject are *Pring v. Pring*, 2 Vern. 99; *Crooke*

v. Brooking, 2 Vern. 50, 107; *Smith v. Attersoll*, 1 Russ. 266; *Podmore v. Gunning*, 7 Sim. 644. Other cases are not uncommonly referred to, but